

Control of Environmental Nuisance from Construction Sites

Construction sites if not properly managed may become a source of environmental nuisance and pollution affecting not only the workers on site but also adjoining occupants and the general public. Authorized persons, registered structural engineers and registered geotechnical engineers are therefore strongly urged to take appropriate steps to prevent or minimise the impact of construction activities on the surrounding environment.

2. A checklist with practical advice for the control of environmental nuisance from construction sites is provided in **Appendix A**. Further guidance, if required, may be sought from the relevant Government departments as listed.
3. A similar practice note has been issued to registered contractors.

(HO Chun-hung)
Building Authority

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Checklist and Practical Advice for the Control of Environmental Nuisance from Construction Sites

Common Environmental Nuisance	Practical Advice to Prevent/Minimise Nuisance (Where Appropriate)	Legislative Sanctions (Where Applicable)	Responsible Government Department(s)
Noise			
(1) Excessive noise from use of powered mechanical equipment.	1. Planning	The carrying out of percussive piling between 7:00 a.m. and 7:00 p.m. on any day other than a public holiday requires a construction noise permit, and is generally prohibited at other time periods.	Environmental Protection Department (EPD) Regional Offices
(2) Excessive noise from prescribed construction works (i.e. erection or dismantling of formwork or scaffolding, loading, unloading or handling of rubble, wooden boards, steel bars, wood or scaffolding material, and hammering).	(a) To use quieter alternative construction method (e.g. non-percussive piling instead of percussive piling).		
	(b) To use quieter powered mechanical equipment (e.g. quality powered mechanical equipment).	During the restricted hours (i.e. between 7:00 p.m. and 7:00 a.m., or at any time on a general holiday including Sunday), the use of powered mechanical equipment for the carrying out of general construction works and/or the carrying out of prescribed construction works in designated areas (predominantly built-up areas) also requires a construction noise permit.	
	2. Adoption of noise abatement measures		
	(a) To provide baffle/noise screens to noisy machines as necessary.	Carrying out the above works without a valid construction noise permit or not adhering to the permit conditions is an offence under the Noise Control Ordinance. The maximum fine is at level 6 upon the first conviction, and \$200,000 upon subsequent conviction.	
	(b) To provide sound absorptive linings to the interior of engine compartments.		
	3. Improvement of operating/maintenance procedures		
	(a) To locate noise source farther away from noise sensitive receivers as far as possible.		
	(b) To operate machine only when necessary.		
	(c) To maintain machine properly (e.g. fastening loose panels, replacing defective silencers, etc.).		
	(d) To reduce impact noise by careful handling.		
	4. Time scheduling		
	(a) To minimise noise disturbance by careful scheduling of noisy activities to less sensitive hours (e.g. avoiding school examination periods).		
	(b) To minimise concurrent operations of noisy activities to reduce cumulative noise impact.		
	5. Education		
	(a) To educate and encourage all workers and foremen to be more noise conscientious.		

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Air			
(3) Black smoke/fume from construction equipment such as diesel hammer.	1. Planning (a) To use less air-polluting and properly maintained equipment.	Failing to comply with an air pollution abatement notice to reduce the emission of air pollutants is actionable under the Air Pollution Control Ordinance. The maximum fines for conviction range from \$100,000 to \$500,000 and 6 to 12 months' imprisonment.	EPD Regional Offices
(4) Dust nuisance from demolition, operation of vehicles, material handling, conveyor system and concrete batching.	2. Material storage and conveying (a) To cover dust generating materials. (b) To provide water sprays to dampen dust generating materials during transportation/storage.	Carrying out the following construction works without notifying the EPD beforehand is actionable under the Air Pollution Control (Construction Dust) Regulation: - site formation; - reclamation; - demolition of a building; - tunnel works excluding any part beyond 100 metres from the exit to the open air; - construction of the foundation of a building; - construction of the superstructure of a building; - road construction works.	EPD Regional Offices
(5) Dust, odour and smoke nuisance from open burning of refuse in construction site.	(c) To cover or shelter any stockpile of dusty materials. 3. Main haul road (a) To provide hard paving on main haul road. (b) To spray main haul road with water. 4. Vehicles (a) To cover materials properly during transportation. (b) To control vehicle speeds on site. (c) To wash vehicle wheels before leaving site.	The maximum fine is \$25,000 for the first conviction, and \$50,000 for the subsequent conviction.	
	5. Fugitive dust from site (a) To water site area frequently. (b) To erect hoarding around site boundary.	Without adopting appropriate dust reduction measures is actionable under the Air Pollution Control (Construction Dust) Regulation. The maximum fine is \$50,000 for the first conviction, and \$100,000 and 3-month imprisonment for the subsequent conviction.	EPD Regional Offices
	6. Concrete batching (a) To obtain a specified process licence, if required. (b) To locate such activities away from sensitive receivers. (c) To incorporate proper dust suppression measures.	Carrying out specified processes (as defined in Schedule 1 of the Air Pollution Control Ordinance) without a licence commits an offence. The maximum fine is \$200,000 and imprisonment for six months upon conviction with a daily fine of \$20,000.	EPD Regional Offices
		Emission of dust from any building under construction or demolition in such manner as to be a nuisance is actionable under the Public Health and Municipal Services Ordinance. Maximum penalty is \$10,000 (level 3) upon conviction with a daily fine of \$200.	Food and Environmental Hygiene Department (FEHD)

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		Failing to provide fans, catch platforms and dust screens to prevent any nuisance from dust or danger from debris or materials in demolition works is actionable under the Building (Demolition Works) Regulations. The maximum fine is \$25,000 (level 4) upon conviction.	Buildings Department (BD)
		Deposit of litter (including dirt, soil or dust) from vehicles onto street is actionable under the Public Cleansing and Prevention of Nuisances Regulation. The maximum fine is \$25,000 (level 4) and imprisonment for 6 months upon conviction.	FEHD
		Open burning is actionable under the Air Pollution Control (Open Burning) Regulation. The maximum fine is \$50,000 plus \$500 for every 15 minutes for which the offence continues for the first conviction.	EPD Regional Offices
Drains/Water			
(6) Blockage of sewers/drainage by silt/cement mortar/concrete.	1. Planning		
	(a) To incorporate temporary drainage system with de-silting facility before connecting directly to the main drainage system.	Discharge of muddy water, etc. from a construction site is actionable under the Public Health and Municipal Services Ordinance. The maximum fine is \$5,000 upon conviction.	Operations and Maintenance Division of Drainage Services Department (DSD) or BD
(7) Discharge of waste water from sites, flooding, etc.	(b) To install sand trap, settling pit or grease trap as necessary.		
(8) Accumulated waste water causing hygiene problems.	(c) To install perimeter drainage channels or place sand bags along the lower end of boundary.	Construction site discharges are controlled under the Water Pollution Control Ordinance (WPCO) and must comply with the terms and conditions of a valid WPCO licence. Discharge of any waste or polluting matter into Water Control Zone is an offence under the WPCO. The maximum penalty is \$200,000 and imprisonment of 6 months for the first offence.	EPD Regional Offices
	(d) To install pH adjustment facilities or petrol interceptor as necessary.		
	(e) To cover open site area with gravel.		
	(f) To locate vehicle and plant servicing areas, vehicle wash bays and lubrication bays within roofed areas as far as possible.		
	(g) To provide vehicle washdown facilities on site.		
	2. Site maintenance		
	(a) To clear trapped debris and sediments frequently.		
	(b) To maintain sanitary condition at effluent disposal point.		
	(c) To pump and properly drain away all stagnant water.		

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	(d) To cover open stockpiles of construction materials and temporarily exposed slope by tarpaulin or similar fabric, especially during rainy season.		
	3. Water conservation		
	(a) To reuse water from de-silting facility for other purposes such as truck wheel washing.		
(9) Blockage of public drains by entry of silty materials through old and/or abandoned sewer and drainage connections.	(a) To seal up sewer and drainage connections before commencing demolition or foundation works.	Failing to seal all sewer and drainage connections in demolition works is actionable under the Building (Demolition Works) Regulations. The maximum fine is \$25,000 (level 4) upon conviction.	BD
		Entry of foreign matter into the public drainage system is actionable under the Public Health and Municipal Services Ordinance. The maximum fine is \$50,000 (level 5) upon conviction.	DSD
(10) Damage to drains and sewers by construction of foundations.	(a) To closely monitor the construction operations to avoid possible damage to drains and sewers.		DSD or BD
(11) Blockage of access to public manholes within sites and/or drainage reserves by temporary structures.	(a) To properly erect temporary structures such as contractors' sheds.		DSD or BD
(12) Damage to public stormwater drains or foul sewers within or adjoining sites not promptly reported to DSD.	(a) To closely monitor the construction operations to avoid possible damage to drains and sewers.		DSD or BD
(13) Surface water drainage from construction sites discharging through illicit connections into foul sewers, and contributing to exceptionally high flood flows at sewage treatment works.	(a) To ensure surface water is directed to sand/silt removal facilities before discharging into natural drainage channels or to surface water drains.		DSD or BD
Health			
(14) Mosquito breeding.	(a) To pump and properly drain away all stagnant water.	Any accumulation of water on any premises found to contain mosquito larvae or pupae is actionable under the Public Health and Municipal Services Ordinance. The maximum penalty is \$25,000 (level 4) upon conviction and a daily fine of \$450.	FEHD
	(b) To spray once weekly a thin layer of diesel oil on the water surface if it is not possible to pump or drain the stagnant water away.		
	(c) To cover all water containers with close fitting lids.		
	(d) To level all undulating ground surface.		
	(e) To remove and properly dispose of all worn out rubber tires, empty cans and bottles and all other articles capable of retaining water from the site.		

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	(f) To provide mosquito disinfestation by professional pest control services providers.		
(15) Fly breeding.	(a) To protect open food with fly-proof containers. (b) To store food remnants and refuse pending removal in properly covered containers. (c) To remove and properly dispose of food remnants and refuse daily. (d) To provide proper latrine accommodations and to properly dispose of human excrete daily.	Any accumulation of refuse which is a nuisance or injurious to health is actionable under the Public Health and Municipal Services Ordinance. The maximum penalty is \$10,000 (level 3) upon conviction and a daily fine of \$200.	FEHD
(16) Rodent infestation.	(a) To store both raw and cooked food in properly covered containers. (b) To store food remnants and refuse pending removal in properly covered containers. (c) To remove and dispose of food remnants daily. (d) To seal up all holes in unpaved ground. (e) To clear and properly dispose of junk and building debris regularly. (f) To provide rodent disinfestation by professional pest control services providers.	Any premises in such a state as to be a nuisance or injurious to health is actionable under the Public Health and Municipal Services Ordinance. The maximum penalty is \$10,000 (level 3) upon conviction and a daily fine of \$200.	FEHD
(17) Accumulation of refuse.	(a) To store refuse pending removal in receptacles provided with close fitting covers. (b) To remove and properly dispose of refuse daily.	Any accumulation of refuse which is a nuisance or injurious to health is actionable under the Public Health and Municipal Services Ordinance. The maximum penalty is \$10,000 (level 3) upon conviction and a daily fine of \$200.	FEHD
(18) Connection of temporary toilet facilities to stormwater drains or water courses causing pollution.	(a) To connect to proper sewers or in unsewered area, connect to a septic tank and soakaway system or a sewage treatment plant for large flows. The same principle is applicable to discharge from kitchens.	Discharge of any waste or polluting matter into stormwater drains or water courses is an offence under the Water Pollution Control Ordinance. The maximum penalty is a fine of \$200,000 and imprisonment for 6 months for the first offence.	DSD, EPD or BD
(19) Improper handling of chemical waste.	(a) To register with EPD as a chemical waste producer, arrange proper packaging, labelling, and storage of chemical wastes, and engage the services of licensed chemical waste collectors to collect and transport the chemical wastes to licensed chemical waste disposal facilities for proper disposal if chemical waste, such as waste lubricating oil, waste lead acid batteries, etc., is generated during construction operations.	Improper handling of chemical waste is actionable under the Waste Disposal Ordinance and the Waste Disposal (Chemical Waste) (General) Regulation. The maximum fine is \$200,000 and imprisonment for 6 months upon conviction.	EPD

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Roads/Footpaths			
(20) Dropping of materials on roads.	(a) To properly secure and cover all loads and materials on vehicles before leaving the site.	Deposit of litter (including dirt, soil or dust) from vehicles onto street is actionable under the Public Cleansing and Prevention of Nuisances Regulation. The maximum fine is \$25,000 (level 4) and imprisonment for 6 months upon conviction.	FEHD or Hong Kong Police Force (HKPF)
(21) Mud on roads.	(a) To provide water bath for washing the wheels of vehicles before leaving the site. (b) To provide workers at the exit of the site to flush the body of each vehicle before leaving the site and to clear any mud that it carries onto the road.	Carrying of mud by vehicle onto street is actionable under the Public Cleansing and Prevention of Nuisances Regulation. The maximum fine is \$25,000 (Level 4) and imprisonment for 6 months upon conviction.	FEHD or HKPF
(22) Excavation works in progress (utility trenches, etc.).	To follow the relevant conditions of excavation permit and the requirements of the Excavation Permit Processing Manual.	May be actionable under the Summary Offences Ordinance or the Land (Miscellaneous Provisions) Ordinance according to circumstances.	Highways Department (HyD)
(A) Undue inconvenience to the public e.g. inadequate footpath width, obstruction due to stacked materials or contractor's equipment.	(a) To maintain minimum footpath width for the pedestrian demand. (b) To supervise the works regularly.	May be actionable under the Summary Offences Ordinance or the Road Traffic (Traffic Control) Regulations according to circumstances.	Transport Department (TD) or HyD
(B) Hazard to the public e.g. insufficient guarding and lighting, loose excavated materials, pedestrians forced to walk on carriageway.	(a) To provide lighting, signing and guarding in accordance with the Code of Practice for the Lighting, Signing and Guarding of Road Works.	May be actionable under the Road Traffic (Traffic Control) Regulations.	HyD
(C) Trench back-filled but not properly surfaced and no works were carried out.	(a) To supervise the backfilling works to ensure that it complies with the relevant standards.		HyD
(23) The run-in/out for construction/ demolition vehicles presenting a hazard to pedestrians.	(a) To ensure pedestrian safety across the run-in/out. (b) To seek agreement of TD on the temporary resiting/removal of traffic signs. (c) To prevent uneven walking surfaces in the event that steel plates are installed at temporary run-in/out.	May be actionable under the Road Traffic Ordinance. May be actionable under the Road Traffic Ordinance and the Road Traffic (Traffic Control) Regulations according to circumstances.	TD TD
(24) Traffic signs/facilities in footpath damaged or obscured by hoardings.	(a) To ensure that hoardings will not affect the existing signs/facilities or the proposed signs for the development. (b) To ensure that the general conditions of hoarding permit shall be observed.	May be actionable under the Road Traffic (Traffic Control) Regulations.	HyD (if signs damaged) or TD (if signs obstructed)
(25) Footpath damaged and not temporarily re-surfaced.	(a) To regularly inspect the footpath affected by the construction works and promptly repair the damaged footpath.		HyD or BD

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(26) Footpath hazardous to pedestrians due to contractor's operations.	(a) To regularly inspect the footpath affected by the construction works and promptly remove any dumping. (b) To closely monitor the contractor's operation to ensure that no dumping is left on the footpath.		HyD or BD
(27) Footpaths not cleared of litter and rubbish.	(a) To require workers to remove litter and rubbish daily. (b) To educate the personnel at construction sites (including workers, supervisors, management staff, and the responsible persons of the site) not to deposit any litter or rubbish onto the footpaths, and monitoring measures should be in place to avoid the occurrence of irregularities.	May be actionable under the Public Health and Municipal Services Ordinance or the Summary Offences Ordinance according to circumstances.	FEHD
(28) Dumping on the footpath e.g. debris, loose soil or building materials.	(a) To designate appropriate areas on site to facilitate the sorting and storage of construction waste, and to arrange, supervise, and track waste delivery and disposal. (b) To regularly inspect the footpath affected by the construction works and promptly remove any dumping. (c) To closely monitor the contractor's operation to ensure that no dumping is left on the footpath. (d) To educate the personnel at construction sites (including workers, supervisors, management staff and the responsible persons of the site) not to deposit any construction or demolition waste onto the footpaths, and monitoring measures should be in place to avoid the occurrence of irregularities.	May be actionable under the Public Health and Municipal Services Ordinance or the Summary Offences Ordinance according to circumstances. Unlawful depositing of waste is actionable under the Waste Disposal Ordinance. The maximum fine is \$200,000 and imprisonment for 6 months upon conviction.	FEHD or HyD according to circumstance. EPD Regional Offices
(29) Vehicles parked on the footpath.	(a) To plan the transportation arrangement to avoid overparking. (b) To designate appropriate areas on site for vehicles parking.	May be actionable under the Road Traffic (Parking) Regulations and the Fixed Penalty (Traffic Contraventions) Ordinance according to circumstances.	HKPF
(30) Objects dropped from buildings.	(a) To provide fans, catch platforms and/or mesh screens and to remove the objects collected regularly to avoid falling objects from height. (b) To provide proper training/briefing to the workers for the carrying out of external wall works.	May be actionable under the Summary Offences Ordinance. The maximum fine is \$50,000 and imprisonment for 1 year upon conviction.	HKPF
Hoardings/Covered Walkways/Gantries (Also refer to PNAP APP-23)			
(31) Fabric of the hoardings apparently unsound and damaged.	(a) To regularly inspect the hoardings to ensure that they are in sound condition and to promptly repair any unsound or damaged hoardings.	May be actionable under the Building (Planning) Regulations.	BD

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(32) Hoardings not of minimum width stipulated in the hoarding plan.	(a) To regularly inspect and ensure that the hoardings are erected in accordance with the hoarding plan and promptly rectify any hoardings of inadequate width.	May be actionable under the Building (Planning) Regulations.	BD
(33) Passage for pedestrians within the hoardings obstructed.	(a) To conduct a thorough site survey to ensure that any existing traffic signs and traffic provisions (e.g. taxi ranks, bus stops, pedestrian queuing areas, and pedestrian crossings) have been considered in preparing the hoarding plan and agreed by TD to minimise any inconvenience caused to the public. (b) To regularly inspect and ensure that the hoardings are erected in accordance with the hoarding plan. (c) To properly carry out any temporary pedestrian management measures and protective measures as agreed by TD and HKPF.	May be actionable under the Summary Offences Ordinance.	HKPF or BD
(34) Hoardings presenting a hazard to pedestrians.	(a) To keep and maintain the hoardings in proper and safe condition and promptly remove any hazards to pedestrians.	May be actionable under the Building (Planning) Regulations.	BD

Remarks:

If the project constitutes a Schedule 2 Designated Project under the Environmental Impact Assessment Ordinance, the project proponent shall apply and obtain an Environmental Permit before the commencement of construction and operation and shall comply with all conditions set out in the Permit.

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